Activity 6.1 will help you notice the various ways the term is used. But we still need to be clear about what exactly does the term means. In this chapter we seek to understand the meaning of globalisation, its different dimensions and their social consequences.

However, this does not mean that there can be only one definition of globalisation and only one way of understanding it. Indeed you will find that different subjects or academic disciplines may focus on different aspects of globalisation. Economics may be dealing more with the economic dimensions such as capital flows. Political science may focus on the changing role of governments. However, the very process of globalisation is so far-reaching that disciplines have to increasingly borrow from each other to understand both the causes and consequences of globalisation. Let us see how sociology seeks to understand globalisation.

What Sociology does is use the sociological imagination to make sense of the connections between the individual and society, the micro and the macro, the local and the global. How is the peasant affected in a remote village? How is s/he connected to global changes? How has it affected the chances of employment for the middle class? How has it affected the possibilities of big Indian corporations becoming transnational corporations? What does it mean to the neighbourhood grocer if the retail sector is opened up to big transnational companies? Why are there so many shopping malls in our cities and towns today? How has it changed the way young people spend their leisure time? These are just few examples of the wide ranging and different kinds of changes that globalisation is bringing about. You will find many more instances whereby global developments are affecting the lives of people. And thereby affecting the way sociology has to study society.

With the opening up of the market and removal of restrictions to the import of many products, we have many more products from different corners of the world in our neighbourhood shops. Since April 1, 2001, all types of quantitative restrictions (QR) on imports were withdrawn. It is no surprise now to find a Chinese pear, an Australian apple vying for attention in the local fruit stall. The neighbourhood store also has Australian orange juice and ready to fry chips in frozen packets. What we eat and drink at home with our family and friends slowly changes. The same set of policy changes affects consumers and producers differently. What may mean greater choices for the urban, affluent consumer may mean a crisis of livelihood for a farmer. These changes are personal because they affect individuals' lives and lifestyles. They are obviously also linked to public policies adopted by the government and its agreement with the World Trade Organisation (WTO). Likewise macro policy changes have meant that instead of one television channel we have literally scores today. The dramatic changes in the media are perhaps the most visible effect of globalisation. We will be discussing this in greater detail in the next chapter. These are just few random examples but they may help you to appreciate the close interconnection

that exists between your personal lives and the apparently remote policies of globalisation. As mentioned earlier, the sociological imagination enables to make this connection between the micro and the macro, between the personal and public.

The sociologist or social anthropologist cannot study society as though it was an isolated entity. The compression of space and time has changed this. Sociologists have to study villages, families, movements, child rearing practices, work and leisure, bureaucratic organisations or castes taking this global interconnection into account. Studies will have to take into account the impact of WTO rules on agriculture and therefore on the farmer.

The effect of globalisation is far reaching. It affects us all but affects us differently. Thus, while for some it may mean new opportunities, for others the loss of livelihood. Women silk spinners and twisters of Bihar lost their jobs once the Chinese and Korean silk yarn entered the market. Weavers and consumers prefer this yarn as it is somewhat cheaper and has a shine. Similar displacements have come with the entry of large fishing vessels into Indian waters. These vessels take away the fish that used to be earlier collected by Indian fishing vessels. The livelihood of women fish sorters, dryers, vendors and net makers thereby get affected. In Gujarat, women gum collectors, who were picking from the '*julifera*' (Baval trees), lost their employment due to the import of cheaper gum from Sudan. In almost all cities of India, the rag pickers lost some of their employment due to import of waste paper from developed countries. We will see later in the chapter how traditional entertainers are affected.

It is obvious that globalisation is of great social significance. But as you saw its impact on different sections of society is very different. There are, therefore, sharply divided views about the impact of globalisation regarding its effect. Some believe that it is necessary to herald a better world. Others fear that the impact of globalisation on different sections of people is vastly different. They argue that while many in the more privileged section may benefit, the condition of a large section of the already excluded population worsens. There are yet others who argue that globalisation is not a new development at all. In the next two sections we look at these issues. We find out a bit more about the kind of global inter-connections that India had in the past. We also examine whether indeed globalisation has some distinctive features and if so what is it.

6.1 Are Global Interconnections New to World and to India

If globalisation is about global interconnections we can ask whether this is really a new phenomenon. Was India or the different parts of the world not interacting with each other in earlier times?

The Early Years

India was not isolated from the world even two thousand years ago. We have read in our history textbooks about the famous Silk route, which centuries ago connected India to the great civilisations, which existed in China, Persia, Egypt and Rome. We also know that throughout India's long past, people from different parts came here, sometimes as *traders*, sometimes as *conquerors*, sometimes as *migrants* in search of new lands and settled down here. In remote Indian villages often people 'recall' a time when their ancestors lived elsewhere, from where they came and settled down where they now live.

Box 6.1

It is interesting to note that the greatest grammarian in Sanskrit namely Panini, who systematised and transformed Sanskrit grammar and phonetics around the fourth century BCE, was of Afghan origin. ...The seventh-century Chinese scholar Yi Jing learned his Sanskrit in Java (in the city of Shri Vijaya) on his way from China to India. The influence of interactions is well reflected in languages and vocabularies throughout Asia from Thailand to Malaya to Indo-China, Indonesia, the Philippines, Korea and Japan. ...
We can find a warning against isolationism in a parable about a well-frog- the 'kupamanduka'- that persistently recurs in several old Sanskrit texts...The *kupamanduka* is a frog that lives its whole life within a well, knows nothing else, and is suspicious of everything outside it. It talks to no one, and argues with no one on anything. It merely harbours the deepest suspicion of the outside world. The scientific, cultural and economic history of the world would have been very limited indeed had we lived like well-frogs. *(Sen 2005: 84–86)*

Global interactions or even a global outlook are thus not novel developments unique to the modern period or unique to modern India.

Colonialism and the Global Connection

We began our story of social and economic development in modern India from the colonial period. You will recall from Chapter 1 that modern capitalism had a global dimension from its very inception. Colonialism was part of the system that required new sources of capital, raw materials, energy, markets and a global network that sustained it. Often globalisation today identifies large-scale movement of people or *migration* as a defining feature. You know, however, that perhaps the greatest movement of people was the migration of European people who settled down in the Americas and Australia. You will remember how indentured labourers were taken away in ships from India to work in distant parts of Asia, Africa and Americas. And the slave trade that carted thousands of Africans away to distant shores.

Independent India and the World

Independent India retained a *global outlook*. In many senses this was inherited from the Indian nationalist movement. Commitment to liberation struggles

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throughout the world, solidarity with people from different parts of the world was very much part of this vision. Many Indians travelled overseas for education and work. *Migration* was an ongoing process. Export and import of raw material, goods and technology was very much a part of the development since independence. Foreign firms did operate in India. So we need to ask ourselves whether the current process of change is radically different from anything we have seen in the past.

6.2 Understanding Globalisation

We have seen that India had significant links with the global world from very early times. We are also aware that western capitalism as it emerged in Europe was both built upon and maintained by global control over resources of other countries as in colonialism. The important question is, however, whether globalisation is just about global interconnections. Or is it about some significant changes in the capitalist system of production and communication, organisation of labour and capital, technological innovations and cultural experiences, ways of governance and social movements? These changes are significant even if some of the patterns were already evident in the early stages of capitalism. Some of the changes such as those flowing from the communication revolution have in a myriad ways transformed the way we work and live.

We seek to spell out some of the distinctive features of globalisation below. As you go through them you will realise why a simple definition of global interconnection does not capture the intensity and complexity of globalisation.

Globalisation refers to the growing interdependence between different people, regions and countries in the world *as social and economic relationships come to stretch world-wide*. Although *economic forces* are an integral part of globalisation, it would be wrong to suggest that they alone produce it. It has been driven forward above all by the development of *information and communication technologies* that have intensified the speed and scope of interaction between people all over the world. Moreover, as we shall see, there was a political context within which it grew. Let us look at the different dimensions of globalisation. To facilitate our discussion we deal with the economic, political and cultural aspects separately. However, you will soon realise how closely connected and interconnected they are.

The Different Dimensions of Globalisation

The Economic

In India we often use the terms liberalisation and globalisation. They are indeed related but not the same. In India we have seen how the state decided to bring some changes in its economic policy in 1991. These changes are termed as liberalisation policies.

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a. The Economic Policy of Liberalisation

Globalisation involves a stretching of social and economic relationships throughout the world. This stretching is pushed by certain economic policies. Very broadly this process in India is termed as liberalisation. The term liberalisation refers to a range of policy decisions that the Indian state took since 1991 to open up the Indian economy to the world market. This marked a break with an earlier stated policy of the government to have a greater control over the economy. The state after independence had put in place a large number of laws that ensured that the Indian market and Indian indigenous business were protected from competition of the wider world. The underlying assumption of such a policy was that an erstwhile colonial country would be at disadvantage in a free market situation.

Liberalisation of the economy meant the steady removal of the rules that regulated Indian trade and finance regulations. These measures are also described as *economic reforms*. What are these reforms? Since July 1991, the Indian economy has witnessed a series of reforms in all major sectors of the economy (agriculture, industry, trade, foreign investment and technology, public sector, financial institutions, etc). The basic assumption was that greater integration into the global market would be beneficial to Indian economy.

The process of liberalisation also involved the taking of loans from international institutions such as the International Monetary Fund (IMF). These loans are given on certain conditions. The government makes commitments to pursue certain kind of economic measures that involve a policy of structural adjustments. These adjustments usually mean cuts in state expenditure on the social sector such as health, education and social security. There is also a greater say by international institutions such as the World Trade Organisation (WTO).

b. The transnational corporations

Among the many economic factors driving globalisation, the role of transnational corporations (TNCs) is particularly important. TNCs are companies that produce goods or market services in more than one country. These may be relatively small firms with one or two factories outside the country in which they are based. They could also be gigantic international ones whose operations criss-cross the globe. Some of the biggest MNCs are companies known all around the world: Coca Cola, General Motors, Colgate-Palmolive, Kodak, Mitsubishi and many others. They are oriented to the global markets and global profits even if they have a clear national base. Some Indian corporations are also becoming transnational. We are, however, not sure at this point of time, what this trend may mean to the people of India as a whole.

c. The electronic economy

The 'electronic economy' is another factor that underpins economic globalisation. Banks, corporations, fund managers and individual investors are able to shift funds internationally with the click of a mouse. This new ability to move 'electronic money' instantaneously carries with it great risks however. In

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Activity 6.2

Make a list of products that you either use or have seen in the market or seen advertised which are produced by transnational corporations. You can make a list of products such as:

- Shoes
- Cameras
- Computers
- Televisions
- Cars
- Music Systems
- Cosmetics like soaps or shampoos
- Clothes
- Processed Food
- Tea
- Coffee
- Milk Powder

India often this is discussed with reference to rising stock markets and also sudden dips because of foreign investors buying stocks, making a profit and then selling them off. Such transactions can happen only because of the communication revolution, which we discuss later.

d. The Weightless Economy or Knowledge Economy

In contrast to previous eras, the global economy is no longer primarily agricultural or industrial in its basis. The weightless economy is one in which products have their base in information, as in the case with computer software, media and entertainment products and internet-based services. A knowledge economy is one in which much of the workforce is involved not in the physical production or distribution of material goods, but in their design, development, technology, marketing, sale and servicing. It can range from the neighbourhood catering service to large organisations involved in providing a host of services for both professional meets like conferences to family events like weddings. We have a host of new occupations that was unheard of a few decades ago, for instance event managers. Have you heard of them? What do they do? Find out about other such new services.

e. *Globalisation of finance*

It should also be noted that for the first time, mainly due to the information technology revolution, there has been a globalisation of finance. Globally integrated financial markets undertake billions of dollars worth transactions within seconds in the electronic circuits. There is a 24-hour trading in capital and security markets. Cities such as New York, Tokyo and London are the key centres for financial trading. Within India, Mumbai is known as the financial capital of the country.

Activity 6.3

- Count the number of channels on television that are business channels and provide updates on stock markets, flows of foreign direct investments, financial reports of various companies, etc. You can choose whether you wish to focus on an Indian language channel or English channels.
- Find out the names of some financial newspapers.
- Do you see any focus on global trends? Discuss.
- How do you think these trends have affected our lives?

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Globalisation and Labour

Globalisation and a New International Division of Labour



A Call Centre

A new international division of labour has emerged in which more and more routine manufacturing production and employment is done in the Third World cities. You have already dealt with outsourcing in Chapter 4 and contract farming in Chapter 5. Here we simply draw upon the example of Nike company to illustrate how this works.

Nike grew enormously from its inception in the 1960s. Nike grew as an importer of shoes. The founder Phil Knight imported shoes from Japan and sold them at athletics meetings. The company grew to a multinational enterprise, a transnational corporation. Its headquarters are in Beverton, just outside Portland, Oregon. Only two US factories ever made shoes for Nike. In the 1960s they were made in Japan. As costs increased production shifted to South Korea in mid-1970s. Labour costs grew in South Korea, so in the 1980s production widened to Thailand and Indonesia. Since the 1990s we in India produce Nike. However, if labour is cheaper elsewhere production centres will move somewhere else. This entire process makes the labouring population very vulnerable and insecure. This flexibility of labour often works in favour of the producers. Instead of mass production of goods at a centralised location (Fordism), we have moved to a system of flexible production at dispersed locations (post-Fordism).

Box 6.4

General Motors produces an ostensibly American car such as Pontiac Le Mans. Of the showroom price of $20,000, only $7,600 goes to Americans (workers and management in Detroit, lawyers and bankers in New York, lobbyists in Washington, and General Motors shareholders all over the country).

Of the rest:

- 48 per cent goes to South Korea for labour and assembly.
- 28 per cent to Japan for advanced components such as engines and electronics.
- 12 per cent to Germany for styling and design engineering.
- 7 per cent to Taiwan and Singapore for small components.
- 4 per cent to the United Kingdom for marketing, and about
- 1 per cent to Barbados or Ireland for data processing

(Reich 1991)

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Globalisation and Employment

Another key issue regarding globalisation and labour is the relationship between employment and globalisation. Here too we see the uneven impact of globalisation. For the middle class youth from urban centres, globalisation and the IT revolution has opened up new career opportunities. Instead of routinely picking up B.Sc./ B.A./B.Com. degree from colleges, many young persons are learning computer languages at computer institutes, taking up jobs at call centers or Business Process Outsourcing (BPO) companies, working as sales persons in shopping malls or picking up jobs at the various restaurants that have opened up. Yet as Box 6.5 shows, broader trends of employment are disappointing.

Box 6.5

"The largest number of poor people lives in South Asia. The poverty rate is particularly high in India, Nepal and Bangladesh," states an ILO report "Labour and Social Trends in Asia and the Pacific 2005"... The study provides a stark analysis of a growing 'employment gap' in the Asia region. It states that the creation of new jobs has failed to keep pace with the region's impressive economic growth. Between 2003 and 2004, employment in Asia and the Pacific increased by a 'disappointing' 1.6 per cent, or by 25 million jobs, to a total of 1.588 billion jobs, compared to the strong economic growth rate of over 7 per cent.

"Job Growth Remains Disappointing- ILO" Labour File September - October 2005 p.54.

Find out from media on the employment situation today in Asian countries including India.

Globalisation and Political Changes

In many ways it was a major political change, namely, *the collapse of the erstwhile socialist world* that hastened globalisation. And also gave a specific economic and political approach to the economic policies that underpin globalisation. These changes are often termed as neo-liberal economic measures. We have already seen what concrete steps the liberalisation policy took in India. Broadly these policies reflect a political vision of free enterprise which believes that a free reign to market forces will be both efficient and fair. It is, therefore, critical of both state regulation and state subsidies. The existing process of globalisation in this sense does have a political vision as much as an economic vision. However, the possibilities that there can be a globalisation which is different do exist. We, thus have the concept of an inclusive globalisation, that is one, which includes all the sections of society.

Another significant political development which is accompanying globalisation is the *growth of international and regional mechanisms for political collaboration*. The European Union (EU), the Association of South East Asian Nations (ASEAN), South Asian Association for Regional Corporation (SAARC) are just some of the examples that indicate the greater role of regional associations.

The other political dimension has been the rise of International Governmental Organisations (IGOs) and International Non-Governmental Organisations (INGOs). An intergovernmental organisation is a body that is established by participating governments and given responsibility for regulating, or overseeing a particular domain of activity that is transnational in scope. The World Trade Organisation (WTO), for instance, increasingly has a major say in the rules that govern trade practices.

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As the name suggests, INGOs differ from intergovernmental organisations in that they are not affiliated with government institutions. Rather they are independent organisations, which make policy decisions and address international issues. Some of the best known INGOs are Greenpeace (see Chapter 8), The Red Cross, Amnesty International and Medecins Sans Frontieres (Doctors Without Borders). Find out more about them.

Globalisation and Culture

There are many ways that globalisation affects culture. We saw earlier that over the ages India has had an open approach to cultural influences and has been enriched because of this. The last decade has seen major cultural changes leading to fears that our local cultures would be overtaken. We saw earlier that our cultural tradition has been wary of the *kupamanduka*, the frog that lives its whole life within a well, knows nothing else, and is suspicious of everything outside it. It talks to no one, and argues with no one on anything. It merely harbours the deepest suspicion of the outside world. Fortunately for us we retain our 'traditional' open-ended attitude to this day. Thus there are heated debates in our society not just about political and economic issues but also about changes in clothes, styles, music, films, languages and body language. You will recall from Chapter 1 and 2 how the 19th century reformers and early nationalists also debated on culture and tradition. The issues today are in some ways the same, in some ways different. What is perhaps different is the scale and intensity of change.

Homogenisation Versus Glocalisation of Culture

A central contention is that all cultures will become similar, that is homogeneous. Others argue that there is an increasing tendency towards glocalisation of culture. Glocalisation refers to the mixing of the global with the local. It is not entirely spontaneous. Nor is it entirely delinked from the commercial interests of globalisation.

It is a strategy often adopted by foreign firms while dealing with local traditions in order to enhance their marketability. In India, we find that all the foreign television channels like Star, MTV, Channel V and Cartoon Network use Indian languages. Even McDonald's sells only vegetarian and chicken products in India and not its beef products, which are popular abroad. McDonald's goes vegetarian during the Navaratri festival. In the field of music, one can see the growth of popularity of 'Bhangra pop', 'Indi pop', fusion music and even remixes.

Activity 6.6

- Identify other instances of glocalisation. Discuss.
- Have you noticed any changes in the films produced by Bollywood? While at one time there were scenes shot in foreign countries, the stories remained local. Then there were stories where characters returned to India even if part of the story was set abroad. Now there are stories set entirely outside India. Discuss.

We have already seen how the strength of Indian culture has been its open ended approach. We also saw how through the modern period our reformers and nationalists actively debated tradition and culture. Culture cannot be seen as an unchanging fixed entity that can either collapse or remain the same when faced with social change. What is more likely even today is that globalisation will lead to the creation of not just new local traditions but global ones too.

Gender and Culture

Very often defenders of a fixed traditional idea of cultural identity defend undemocratic and discriminating practices against women in the name of cultural identity. These could range from a defence of sati to defence of women's exclusion from education and participation in public matters. Globalisation can then be taken as a bogey to defend unjust practices against women. Fortunately for us in India we have been able to retain and develop a democratic tradition and culture that allows us to define culture in a more inclusive and democratic fashion.

Culture of Consumption

Often when we speak of culture we refer to dresses, music, dances, food. However, culture as we know refers to a whole way of life. There are two uses of culture that any chapter on globalisation should mention. They are the culture of consumption and corporate culture. Look at the crucial role that cultural consumption is playing in the process of globalisation especially in shaping the growth of cities. Till the 1970s the manufacturing industries used to play a major role in the growth of cities. Presently, cultural consumption (of art, food, fashion, music, tourism) shapes to a large extent the growth of cities. This is evident in the spurt in the growth of shopping malls, multiplex cinema halls, amusement parks and 'water world' in every major city in India. Most significantly advertisements and the media in general promote a culture where spending is important. To be careful with money is no longer a virtue. Shopping is a past time actively encouraged.

Successive successes in fashion pageants like Miss Universe and Miss World have led to a tremendous growth in industries in the fields of fashion, cosmetics and health. Young girls dream of being an Aishwarya Rai or Sushmita Sen. Popular game shows like *Kaun Banega Crorepati* actually made it seem possible that your fortunes could turn over a few games.

Activity 6.7

- Compare the traditional shop and the new departmental stores that have come up.
- Compare the mall with the traditional market. Discuss how it is not just goods that change but how the meaning of shopping changes.
- Discuss the new kinds of food that is now served in eating places.
- Find out about the new fast food restaurants that are global in their menu and operation.

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Corporate Culture

Corporate culture is a branch of management theory that seeks to increase productivity and competitiveness though the creation of a unique organisational culture involving all members of a firm. A dynamic corporate culture - involving company events, rituals and traditions - is thought to enhance employee loyalty and promote group solidarity. It also refers to the way of doing things, of promotion and packaging products.

The spread of multinational companies and the opportunities opened up by the information technology revolution has created in the metropolitan cities in India a class of upwardly mobile professionals working in software companies, multinational banks, chartered accountancy firms, stock markets, travel, fashion designing, entertainment, media and other allied fields. These high-flying professionals have highly stressful work schedules, get exorbitant salaries and are the main clientele of the booming consumer industry.

Threat to many Indigenous Craft and Literary Traditions and Knowledge Systems

Yet another link between cultural forms and globalisation is evident from the condition of many indigenous craft and literary traditions and knowledge systems. It is, however, important to remember that modern development even prior to the stage of globalisation did make inroads into traditional cultural forms and occupations based on them. But the sheer scale and intensity of change is enormous. For instance about 30 theatre groups, which were active around the textile mills area of Parel and Girgaum of Mumbai city, have become defunct, as most of the mill workers are out of jobs in these areas. Some years back, there were reports of large number of suicides by the traditional weavers in Sircilla village of Karimnagar district and in Dubakka village in Medak district, both in Andhra Pradesh. These weavers with no means to invest in technology were unable to adapt to the changing consumer tastes and competition from power looms.

Similarly, various forms of traditional knowledge systems especially in the fields of medicine and agriculture have been preserved and passed on from one generation to the other. Recent attempts by some multinational companies to patent the use of Tulsi, Haldi (turmeric), *Rudraksha* and Basmati rice have highlighted the need for protecting the base of its indigenous knowledge systems.

Box 6.6

The condition of our *dombari* community is very bad. Television and radio have snatched away our means of livelihood. We perform acrobatics but because of the circus and the television, which have reached even in remote corners and villages, nobody is interested in our performances. We do not get even a pittance, however hard we perform. People watch our shows but just for entertainment, they never pay us anything. They never bother about the fact that we are hungry. Our profession is dying.

(More 1970)

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8.3 Types of Social Movements

Reformist, Redemptive, Revolutionary

There are different kinds of social movements. They can be classified as: (i) redemptive or transformatory; (ii) reformist; and (iii) revolutionary. A *redemptive* social movement aims to bring about a change in the personal consciousness and actions of its individual members. For instance, people in the Ezhava community in Kerala were led by Narayana Guru to change their social practices. *Reformist* social movements strive to change the existing social and political arrangements through gradual, incremental steps. The 1960s movement for the reorganisation of Indian states on the basis of language and the recent *Right to Information* campaign are examples of reformist movements. *Revolutionary* social movements attempt to radically transform social relations, often by capturing state power. The Bolshevik revolution in Russia that deposed the Tsar to create a communist state and the Naxalite movement in India that seeks to remove oppressive landlords and state officials can be described as revolutionary movements.

As you might discover when you try to classify a social movement in terms of this typology, most movements have a mix of redemptive, reformist and revolutionary elements. Or the orientation of a social movement may shift over time such that it starts off with, say, revolutionary objectives and becomes reformist. A movement may start from a phase of mass mobilisation and collective protest to become more institutionalised. Social scientists who study the life cycles of social movements call this a move towards '*social movement organisations*'.

How a social movement is perceived and classified is always a matter of interpretation. It differs from one section to another. For instance, what was a 'mutiny' or 'rebellion' for British colonial rulers in 1857 was 'the first war of Independence' for Indian nationalists. A mutiny is an act of defiance against supposedly legitimate authority, i.e., the British rule. A struggle for independence is a challenge to the very legitimacy of British rule. This shows how people attach different meanings to social movements.

Distinguishing the New Social Movement from the Old Social Movements

Working class movements in the capitalist west were wresting better wages, better living conditions, social security, free schooling and health security from the state. That was also a period when socialist movements were establishing new kinds of states and societies. *The old social movements clearly saw reorganisation of power relations as a central goal.*

The *old social movements functioned within the frame of political parties.* The Indian National Congress led the Indian National Movement. The Communist

his death, Birsa became an important icon of the movement. Stories and songs about him can be found all over Jharkhand. The memory of Birsa's struggle was also kept alive by writing. Christian missionaries working in south Bihar were responsible for spreading literacy in the area. Literate adivasis began to research and write about their history and myths. They documented and disseminated information about tribal customs and cultural practices. This helped create a unified ethnic consciousness and a shared identity as *Jharkhandis*.

Literate adivasis were also in a position to get government jobs so that, over time, a middle-class adivasi intellectual leadership emerged that formulated the demand for a separate state and lobbied for it in India and abroad. Within south Bihar, adivasis shared a common hatred of *dikus* – migrant traders and moneylenders who had settled in the area and grabbed its wealth, impoverishing the original residents. Most of the benefits from the mining and industrial projects in this mineral-rich region had gone to *dikus* even as adivasi lands had been alienated. Adivasi experiences of marginalisation and their sense of injustice were mobilised to create a shared Jharkhandi identity and inspire collective action that eventually led to the formation of a separate state.

The issues against which the leaders of the movement in Jharkand agitated were:

- acquisition of land for large irrigation projects and firing ranges;
- survey and settlement operations, which were held up, camps closed down, etc.
- collection of loans, rent and cooperative dues, which were resisted;
- nationalisation of forest produce which they boycotted

The North East

The process of state formation initiated by the Indian government following the attainment of independence generated disquieting trends in all the major hill districts in the region. Conscious of their distinct identity and traditional autonomy, the tribes were unsure of being incorporated within the administrative machinery of Assam.

> The rise of ethnicity in the region is thus a response to cope with the new situation which developed as a consequence of the tribe's contact with a powerful alien system. Long isolated from the Indian mainstream the tribes were able to maintain their own worldview and social and cultural institutions with little external influence. ...While the earlier phase showed a tendency towards secessionism, this trend has been replaced by a search for autonomy within the framework of the Indian Constitution *(Nongbri 2003: 115)*.

One of the key issues that bind tribal movements from different parts of the country is the alienation of tribals from forest lands. In this sense ecological issues are central to tribal movements. Just as cultural issues of identity and economic issues such as, inequality, are. This brings us back to the question about the blurring of old and new social movements in India.

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8.8 The Women's Movement

The 19th Century Social Reform Movements and Early Women's Organisations

You are already familiar with the 19th century social reform movements that raised various issues concerning women. Chapter 2 had dealt with it as did the earlier book. The early 20th century saw the growth of women's organisations at the national and the local level. The Women's India Association (WIA) (1917), All India Women's Conference (AIWC) (1926) and National Council for Women in India (NCWI) (1925) are ready names of organisations that we can mention. While many of them began with a limited focus, their scope extended over time. For instance, the AIWC began with the idea that 'women's welfare' and 'politics' were mutually exclusive. Few years later in one of the Presidential addresses it was stated, "...Can the Indian man or woman be free if India be a slave? How can we remain dumb about national freedom, the very basis of all great reforms?" (Chaudhuri 1993: 149)



In the North Cedar Hills, a woman named Gufiallo became famous for her part in the Civil Disobedience Movement.

It can be argued that this period of activity did not constitute a social movement. It can be argued otherwise too. Let us recall some of the features that characterise social movements. It did have organisations, ideology, leadership, a shared understanding and the aim of bringing about changes on a public issue. What they succeeded together was to create an atmosphere where the women's question could not be ignored.

Agrarian Struggles and Revolts

It is often assumed that only middle class educated women are involved in social movements. Part of the struggle has been to remember the forgotten history of women's participation. Women participated along with men in struggles and revolts originating in tribal and rural areas in the colonial period. The Tebhaga movement in Bengal, the Telangana arms struggle from the erstwhile Nizam's rule, and the Warli tribal's revolt against bondage in Maharashtra are some examples.

Post 1947

An issue that is often raised is that if there was an active women's movement before 1947, what happened afterwards? One explanation has been that many

of the women activists who were also involved in the nationalist movement got involved in the nation building task. Others cite the trauma of Partition responsible for the lull.

In the mid–1970s, there was a renewal of the women's movement in India. Some call it the second phase of the Indian women's movement. While many of the concerns remained the same that there were changes both in terms of organisational strategy, as well as, ideologies.

Apart from organisational changes, there were new issues that were focussed upon. For instance, violence against women. Over the years, there have been numerous campaigns that have been taken up. You may have noticed that application for school forms have both father's and mother's names. This was not always true. Likewise, important legal changes have taken place thanks to the campaign by the women's movement. Issues of land rights, employment have been fought alongside rights against sexual harassment and dowry.



Struggle against dowry



Shahjehan Begum 'Ape' with a photograph of her daughter, allegedly murdered for dowry

There has been a recognition too that while all women are in some way disadvantaged *vis-a-vis* men, all women do not suffer the same level or kind of discrimination. The concerns of the educated middle class woman is different from the peasant woman, just as the concern of the Dalit woman is different from the 'upper caste' woman. Let us take the example of violence.

There has also been greater recognition that both men and women are constrained by the dominant gender identities. For instance, men in patriarchal societies feel they must be strong and successful. It is not, manly, to express oneself emotionally. A gender-just society would allow both men and women to be free. This of course rests on the idea that for true freedom to grow and develop, injustices of all kind have to end. The idea of gender-just society is based upon two important factors — educated women with multiple roles and improved sex ratio. The programme of the Government of India, *Beti Bachao, Beti Padhao Yojana* is an important effort in the actualisation of a gender-just society.

Commission on the pattern of Ombudsman, for tackling corruption and redressal of public grievances. The terms 'Lokpal' and 'Lokayukta', as names of such institutions, were also mentioned during the discussion. The term Lokpal is a Sanskrit word; 'Lok' means 'People' and 'pala' means 'Protector'. The term was coined as an Indian variant of the concept of 'Ombudsman', which has a Scandinavian origin and refers to an official who is appointed to investigate complaints of citizens against the administration.

In 1966, The First Administrative Reforms Commission (ARC), recommended a two-tier machinery consisting of the Lokpal and Lokayuktas to redress the grievances of the public. As per the recommendations of the ARC, the Lokpal at the Centre was to deal with complaints against Ministers and Secretaries

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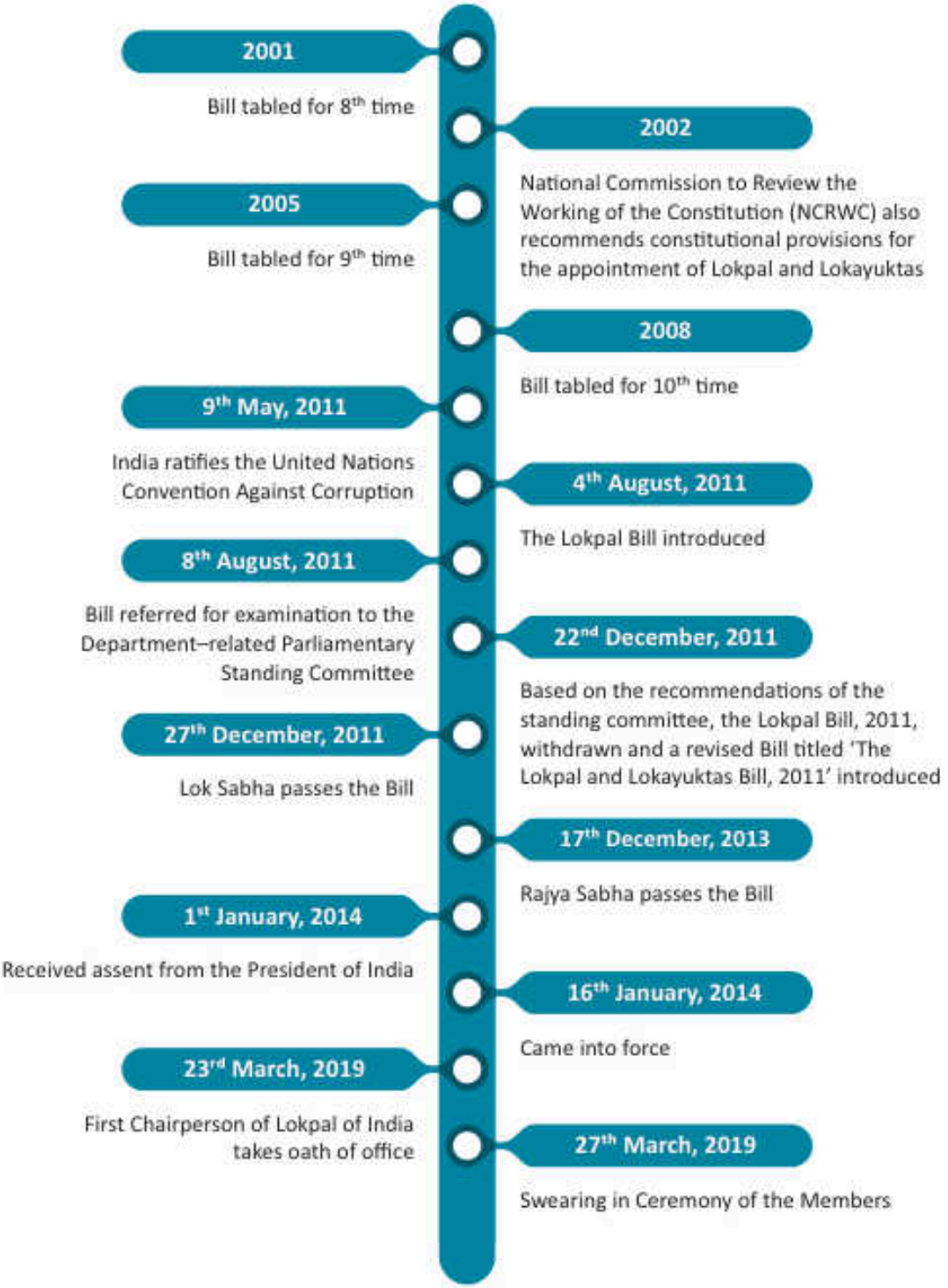
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Based on the recommendations of the standing committee, the Lokpal Bill, 2011, withdrawn and a revised Bill titled 'The Lokpal and Lokayuktas Bill, 2011' introduced
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of the Central Government as well as in the states. One Lokayukta in each State was to deal with the complaints against the rest of the administrative machinery. The National Commission to Review the Working of the Constitution, 2002 (NCRWC) also recommended Constitutional Provisions for the appointment of the Lokpal and Lokayuktas. The second Administrative Reforms Commission also recommended setting up of institutions of the Lokpal and Lokayuktas at the earliest by making suitable amendments in the Constitution of India.

A Bill to set up the Lokpal was introduced for the first time in the Fourth Lok Sabha as the Lokpal and Lokayuktas Bill, 1968. The Bills were introduced many times viz. in 1971, 1977, 1985, 1989, 1996, 1998, 2001, and twice in 2011. The Lokpal Bill was finally introduced on 4th August, 2011, and on 8th August, 2011 was referred to the Department-related Parliamentary Standing Committee for examination. Based on the recommendations contained in the Committee's Report, the Lokpal Bill, 2011, was withdrawn and a revised Bill titled 'The Lokpal and Lokayuktas Bill, 2011' was again introduced in the Lok Sabha on 22nd December, 2011.

This Bill was passed by the Lok Sabha with certain amendments. The Rajya Sabha referred the Bill, as passed by the Lok Sabha, to a Select Committee of the Rajya Sabha. As per the report of the Select Committee, the Government amended the Lokpal and Lokayuktas Bill, 2011. The Bill was passed by the Rajya Sabha with certain amendments and was sent back to the Lok Sabha for approval. The Lok Sabha passed the Bill as amended by the Rajya Sabha. The Bill received the President's assent on 1st January, 2014 and was notified on the same day as The Lokpal And Lokayuktas Act, 2013 (No. 1 of 2014). In exercise of the powers conferred by sub-section (4) of Section 1 of the Act, the Central Government appointed 16th January, 2014, as the date on which the provisions of the Act would come into force. The Act has been amended once by the Lokpal and Lokayuktas (Amendment) Act, 2016.

The objective of the Lokpal and Lokayuktas Act, 2013, is to further strengthen the existing legal and institutional mechanisms, thereby facilitating more effective implementation of some of the obligations under the 'United Nations Convention Against Corruption', which was ratified by India on 9th May, 2011.

As per provisions of the Act, the Chairperson and Members of Lokpal are appointed by the President of India after obtaining recommendations of a Selection Committee consisting of the Prime Minister, the Speaker of Lok Sabha, the Leader of Opposition in the Lok Sabha, the Chief Justice of India (CJI), or a sitting Supreme Court judge nominated by the CJI and an eminent jurist to be nominated by the President of India based on the recommendations of the other members of the Selection Committee.

Shri Justice Pinaki Chandra Ghose was appointed as the first Chairperson of the Lokpal of India. The President of India administered the Oath of Office to him on 23rd March, 2019, in a ceremony held at the Rashtrapati Bhavan. Subsequently, four judicial members and four other members were administered the Oath of Office by the Chairperson on 27th March, 2019 at the Vigyan Bhawan, New Delhi.

1. Introduction

Corruption is an age-old evil with a wide range of detrimental effects on individuals, societies, and nations. The scourge subverts socio-economic equality, rule of law, and human rights, distorting markets, justice, and quality of services, thus leading to dissatisfaction among citizens and an increasing disregard towards the system.

Corruption, which can occur at different scales, is both a dishonest and an illegal act committed by a person or organization in a position of authority to obtain unlawful benefits or abuse power for personal advantage. It can take numerous forms ranging from petty corruption involving favours between a small number of people to grand corruption that impacts the government on a huge scale as well as widespread corruption that has become part of society's everyday functioning. It is a key element in socio-economic under performance and a major obstacle to national growth and development.

In order to tackle this menace, the Parliament of India enacted the Lokpal and Lokayuktas Act, 2013 with the objective to inquire into complaints and allegations of corruption. The jurisdiction of this law has been extended to all public functionaries as specified in section 14 of the Act, including officials of institutions in the non-government sector receiving grants from the government or foreign contributions.

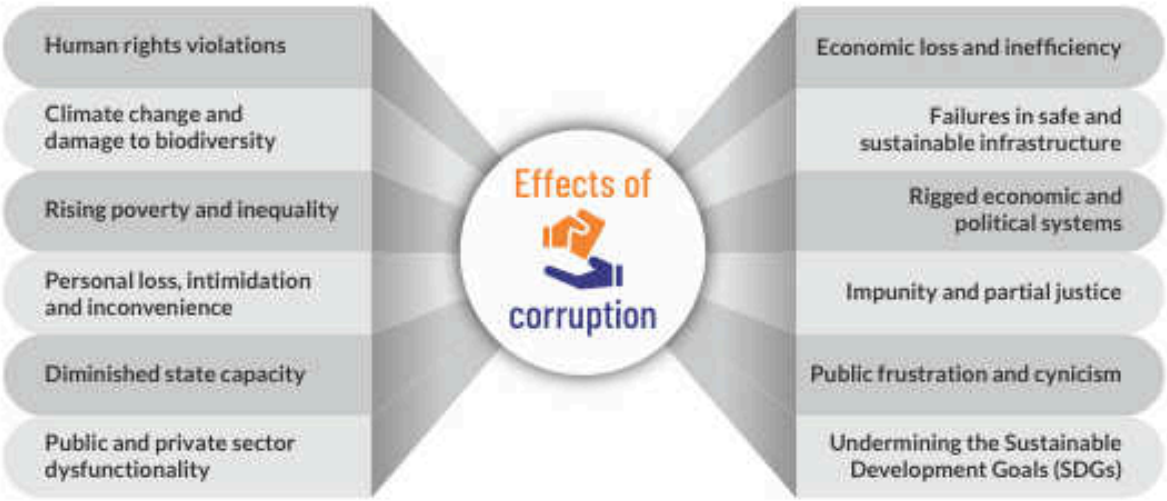


Figure 1: The wide-ranging effects of corruption

Historical Background

The term 'Lokpal' is a Sanskrit word, where etymologically, the word 'Lok' means 'People' and 'pala' means 'Protector'. It has been conceived as an Indian variant of 'Ombudsman', a concept with a Scandinavian origin referring to an official appointed to investigate complaints of citizens against the administration.

The origin and evolution of the debate around this institution in India can be traced as far back as the 1960s. The First Administrative Reforms Commission (ARC-1) in its interim report on the 'Problems of Redressal of Citizens' Grievances' in 1966, recommended the setting up of the institution of Lokpal at the Centre. Thereafter, the importance of the establishment of this institution has been stressed by various commissions. In 2002, the National Commission to Review the Working of the Constitution under Justice Venkatachaliah recommended the appointment of the Lokpal and Lokayuktas, whereas, in 2005, the Second Administrative Reforms Commission (ARC-2) recommended the establishment of the office of Lokpal without delay. The Lokpal and Lokayuktas Bill, 1968 to set up the Lokpal was introduced for the first time in the Fourth Lok Sabha followed by introductions in 1971, 1977, 1985, 1989, 1996, 1998, and 2001. The Lokpal Bill was finally introduced on 4th August, 2011, and was referred to the Department-related Parliamentary Standing Committee for examination on 8th August, 2011.

In view of the recommendations contained in the Standing Committee's Report, the original Lokpal Bill, 2011, was withdrawn and a revised Bill 'The Lokpal and Lokayuktas Bill, 2011' was introduced in the Lok Sabha on 22nd December, 2011, passed on 27th December, 2011 with certain amendments and sent to the Rajya Sabha for consideration.

The Select Committee of the Rajya Sabha deliberated on the Bill and made several recommendations on issues like the creation of Lokayuktas in the States, Jurisdiction of Lokpal, Procedure of inquiry and investigation, Power to grant sanction, Reforms of CBI, Composition of the Selection Committee, Suspension of Chairman/ Member of Lokpal and Complaints made in 'good faith'. Out of 16 recommendations, 14 were accepted and the amended Lokpal and Lokayuktas Bill, 2011 was brought for consideration of the Rajya Sabha on 13th December, 2013. This Bill was passed with certain amendments on 17th December, 2013 and sent back to the Lok Sabha, which passed it on 18th December, 2013. The Bill received the Hon'ble President's assent on 1st January, 2014 becoming Act No. 1 of 2014. In terms of sub-section (4) of section 1 of 'The Lokpal and Lokayuktas Act 2013', the Act came into force on 16th January, 2014. The Act has been amended once in 2016, by the Lokpal and Lokayuktas (Amendment) Act, 2016.

The Hon'ble President of India administered the Oath of Office to Shri Justice Pinaki Chandra Ghose as the first Chairperson of the Lokpal of India on 23rd March, 2019. The appointment of the Chairperson was followed by administering of the Oath of Office by the Chairperson to four judicial members and four other members on 27th March, 2019.

The United Nations Convention against Corruption (UNCAC)

The 'United Nations Convention Against Corruption' (UNCAC) is a legally binding multilateral treaty for anti-corruption aimed at reducing various types of cross-border corruption, trading in influence and abuse of power, and corruption in the private sector such as embezzlement and money laundering. The convention was ratified by India on 9th May, 2011 reaffirming India's commitment to fight corruption and undertake administrative and legal reforms that facilitate coherent and stern management of this issue by law enforcement agencies. The treaty also aims to strengthen the enforcement of international law and judicial cooperation between countries by providing effective legal mechanisms for international asset recovery.

The Lokpal and Lokayuktas Act, 2013 was enacted, *inter alia*, for more effective implementation of this convention. The establishment of the Lokpal of India vide this Act thus contributes significantly to the implementation of India's obligations under the 'United Nations Convention Against Corruption' (UNCAC), as it provides a statutory basis and provisions for independent investigation and prosecution of authorities.

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27th March, 2019

Swearing in Ceremony of the Members

"

प्रक्षालनाद्धि पंकस्य
दूरात् स्पर्शनम् वरम्।

Rather than cleaning the dirt later,
it is better not to let it get dirty in the first place.

"

2. Legal Provisions

The Lokpal of India functions under the provisions of the Lokpal and Lokayuktas Act, 2013.

The Salient Features of the Act

Section 4: Appointment of Chairperson and Members

The Chairperson and the Members of the Lokpal are appointed by the President after obtaining recommendations of a Selection Committee consisting of the Prime Minister, the Speaker of the House of the People, the Leader of the Opposition in the House of the People, the Chief Justice of India, or a sitting Supreme Court judge nominated by him and one eminent jurist to be nominated by the President based on the recommendations of the other members of the Selection Committee.

The Chairperson and every Member shall hold the office for a term of five years or until he/ she attains the age of seventy years, whichever is earlier.

Section 7: Salary, Allowances and Other Conditions of Service of Chairperson and Members

The salary, allowances and other service conditions of the Chairperson and Members are the same as those of the Chief Justice of India and those of a Judge of the Supreme Court, respectively. The salary, allowances and pension payable to and other conditions of service of, the Chairperson or the Members cannot be varied to their disadvantage after their appointment.

Section 10: Secretary, other Officers and Staff of Lokpal

The Secretary to the Lokpal in the rank of Secretary to Government of India is appointed by the Chairperson from a panel of names sent by the Central Government. The Director of Inquiry and the Director of Prosecution, not below the rank of Additional Secretary to the Government of India or equivalent, are also appointed by the Chairperson from a panel of names sent by the Central Government.

Section 13: Expenses of Lokpal

The administrative expenses of the Lokpal, including all salaries, allowances, and pensions payable to or in respect of the Chairperson, Members or Secretary or other officers or staff of the Lokpal, are charged upon the Consolidated Fund of India.

Section 14: Jurisdiction of Lokpal

The Lokpal can inquire or cause an inquiry to be conducted into any allegation of corruption made in a complaint in respect of the following, namely:

(a) any person who is or has been a Prime Minister:

Provided that the Lokpal shall not inquire into any matter involved in, or arising from, or connected with, any such allegation of corruption against the Prime Minister,

i.) in so far as it relates to international relations, external and internal security, public order, atomic energy, and space;

ii.) unless a full bench of the Lokpal consisting of its Chairperson and all Members considers the initiation of inquiry and at least two-thirds of its Members approve of such inquiry.

(b) any person who is or has been a Minister of the Union;

(c) any person who is or has been a member of either House of Parliament;

(d) any Group 'A' or Group 'B' officer or equivalent or above, from amongst the public servants, defined in sub-clauses (i) and (ii) clause (c) of section 2 of the Prevention of Corruption Act, 1988, when serving or who has served, in connection with the affairs of the Union;

(e) any Group 'C' or Group 'D' official or equivalent, from amongst the public servants, defined in sub-clauses (i) and (ii) of clause (c) of section 2 of the Prevention of Corruption Act, 1988, when serving or who has served in connection with the affairs of the Union subject to the provision of sub-section (1) of section 20;

(f) any person who is or has been a chairperson or member or officer or employee in anybody or Board or corporation or authority or company or society or trust or autonomous body (by whatever name called) established by an Act of Parliament or wholly or partly financed by the Central Government or controlled by it;

(g) any person who is or has been a Director, Manager, Secretary or another officer of every other society or association of persons or trust (whether registered under any law for the time being in force or not), by whatever name called, wholly or partly financed by the Government and the annual income of which exceeds such amount as the Central Government may, by notification, specify.

The Central Government by a notification dated 20th June, 2016, has specified this amount as one Crore Rupees. Only the grants or financial assistance given by the Central Government are required to be taken into consideration for determining the annual income for this purpose; and

(h) any person who is or has been a Director, Manager, Secretary or another officer of every other society or association of persons or trust (whether registered under any law for the time being in force or not) in receipt of any donation from any foreign source under the Foreign Contribution (Regulation) Act, 2010 in excess of ten lakh rupees in a year or such higher amount as the Central Government may, by notification, specify.

Section 20: Preliminary Inquiry and Investigation

The Lokpal on receipt of a complaint, if it decides to proceed further, may order preliminary inquiry against any public servant by its Inquiry Wing or any agency (including the Delhi Special Police Establishment) to ascertain whether there exists a prima facie case for proceeding in the matter; or may order investigation by any agency (including the Delhi Special Police Establishment) where there exists a prima facie case.

The Lokpal shall if it has decided to proceed with the preliminary Inquiry, by a general or special order, refer the complaints or a category of complaints or a complaint received by it in respect of public servants belonging to Group A or Group B or Group C or Group D to the Central Vigilance Commission constituted under sub-section (1) of section 3 of the Central Vigilance Commission Act, 2003.

During the preliminary inquiry, the Inquiry Wing or any agency (including the Delhi Special Police Establishment) shall conduct a preliminary inquiry and on the basis of material information and documents collected, seek the comments on the allegations made in the complaint from the public servant and the competent authority and after obtaining the comments of the concerned public servant and the competent authority, submit a report to the Lokpal, within sixty days from the date of receipt of the reference.

A bench consisting of not less than three members of the Lokpal of India shall consider every preliminary inquiry report, and after giving an opportunity of being heard to the public servant, decide whether there exists a prima facie case, and proceed with one or more of the following actions, namely:

(a) an investigation by any agency or the Delhi Special Police Establishment, as the case may be;

(b) initiation of the departmental proceedings or any other appropriate action against the concerned public servants by the competent authority; and

(c) closure of the proceedings against the public servant and to proceed against the complainant under section 46.

In case the Lokpal decides to proceed to investigate a complaint, it shall direct any agency (including the Delhi Special Police Establishment) to carry out the investigation as expeditiously as possible and complete the investigation within six months from the date of its order:

Provided that the Lokpal may extend the said period by a further period not exceeding six months at a time for the reasons to be recorded in writing:

In case the Lokpal decides to proceed further for ordering an investigation under clause (b) of section 20 (1) of the Act, the Lokpal shall, before ordering such investigation, call for the explanation of the public servant so as to determine whether there exists a prima facie case for investigation.

In respect of the cases referred by the Lokpal, the investigation agency shall submit the investigation report to the Court having jurisdiction and forward a copy to the Lokpal. A bench of at least three members will consider the report and may grant sanction to

file the charge sheet or direct for closure of report before the Special Court or direct the competent authority to initiate departmental proceedings. The Lokpal may also direct its Prosecution Wing or the investigation agency to initiate prosecution in the Special Court.

Section 21: Persons likely to be prejudicially affected to be heard

If at any stage of the proceeding, the Lokpal is of the opinion that a person other than the accused is likely to be prejudicially affected by the preliminary inquiry, he is to be provided a reasonable opportunity of being heard and to produce evidence in his defence consistent with the principles of natural justice.

Section 22: Public servant or any other person to furnish information, etc.

The Lokpal or the investigating agency may require any public servant or any other person to furnish information or produce documents relevant to the preliminary inquiry or investigation.

Section 23: Power of Lokpal to grant sanction for initiating prosecution

The Lokpal shall have the power to grant sanction for prosecution under clause (a) of sub-section (7) of section 20 of the Act, notwithstanding anything contained in section 197 of the Code of Criminal Procedure, 1973 (2 of 1974) or section 6A of the Delhi Special Police Establishment Act, 1946 (25 of 1946) or section 19 of the Prevention of Corruption Act, 1988 (49 of 1988). However, no prosecution under this section shall be initiated against any public servant accused of any offence alleged to have been committed by him while acting or purporting to act in the discharge of his official duty, and no Court shall take cognizance of such offence except with the previous sanction of the Lokpal. Also, this section shall not be applicable for persons holding office as per the Constitutional provisions and in respect of which procedure for removal of such person has been specified.

Section 25: Supervisory powers of Lokpal

Lokpal shall have the powers of superintendence over, and to give direction to the Delhi Special Police Establishment in respect of the matters referred by the Lokpal for preliminary inquiry or investigation to the agency. Any officer of the Delhi Special Police Establishment investigating a case referred to it by the Lokpal shall not be transferred without the approval of the Lokpal.

The Central Vigilance Commission shall send a statement to the Lokpal in respect of action taken on complaints referred to it for a preliminary inquiry. On receipt of such a statement, the Lokpal may issue guidelines for effective and expeditious disposal of such cases.

Section 28: Power of Lokpal to utilise services of officers of Central or State Government

The Lokpal may utilise the services of any officer or organisation or investigating agency of the Central Government or any State Government, for the purpose of conducting any preliminary inquiry or investigation, as the case may be. The officer or organisation or agency whose services are utilised shall inquire or, as the case may be, investigate into any matter pertaining to the preliminary

inquiry or investigation and submit a report thereon to the Lokpal within a period as specified.

Section 29: Attachment of Assets

Where the Lokpal has reason to believe that a person accused of having committed an offence relating to corruption is in possession of any proceeds of corruption, the Lokpal may provisionally attach such property for a period not exceeding ninety days from the date of the order. The Lokpal, when it provisionally attaches any property, shall, within thirty days of such attachment, direct its Prosecution Wing to file an application stating the facts of such attachment before the Special Court and make a prayer for confirmation of attachment of the property till completion of the proceedings against the public servant in the Special Court.

Section 32: Transfer or Suspension of Public Servant

Where the Lokpal is *prima facie* satisfied that the continuance of a public servant in his post while conducting the preliminary inquiry is likely to affect such preliminary inquiry adversely; or such public servant is likely to destroy or in any way tamper with the evidence or influence witnesses, the Lokpal may recommend to the Central Government for transfer or suspension of such public servant from the post held by him till such period as may be specified in the order. The Central Government shall ordinarily accept the recommendation of the Lokpal except for the reasons to be recorded in writing in a case where it is not feasible to do so for administrative reasons.

Section 33: Power of Lokpal to give directions to prevent destruction of records during preliminary inquiry

The Lokpal may issue appropriate directions to a public servant entrusted with the preparation or custody of any document or record to protect such document or record from destruction/ damage /altering/ secreting or to prevent the public servant from transferring or alienating any assets allegedly acquired by him through corrupt means.

Section 35: Special Courts for Trial of Cases

The Central Government shall constitute such number of Special Courts, as recommended by the Lokpal, to hear and decide the cases arising out of the Prevention of Corruption Act, 1988 (49 of 1988) or under this Act.

The Special Courts shall ensure completion of each trial within one year from the date of filing of the case in the Court. In case the trial cannot be completed within one year, the Special Court shall record reasons therefor and complete the trial within a further period of not more than three months or such further periods not exceeding three months each, for reasons to be recorded in writing before the end of each such three months period, but not exceeding a total period of two years.

Section 37: Procedure for Removal from the Office

The Chairperson or any Member can be removed from his/ her office by order of the President on grounds of misbehaviour after the Supreme Court, on a reference being made to it by the President on a petition signed by at least one hundred Members of Parliament has, on an inquiry held in accordance with the procedure prescribed in that behalf, reported that the Chairperson or such Member, as the case may be, ought to be removed on such ground.

Section 46: Prosecution for False Complaint

Whoever makes any false and frivolous or vexatious complaint shall, on conviction, be punished with imprisonment for a term which may extend to one year and with a fine which may extend to one lakh rupees. In case of conviction of a person for having made a false complaint, such person shall be liable to pay compensation to the public servant against whom he made the false complaint in addition to the legal expenses for contesting the case by such public servant. However, no action will be taken in case of complaints made in good faith. The cognizance of an offence under this section shall be taken only by a Special Court.

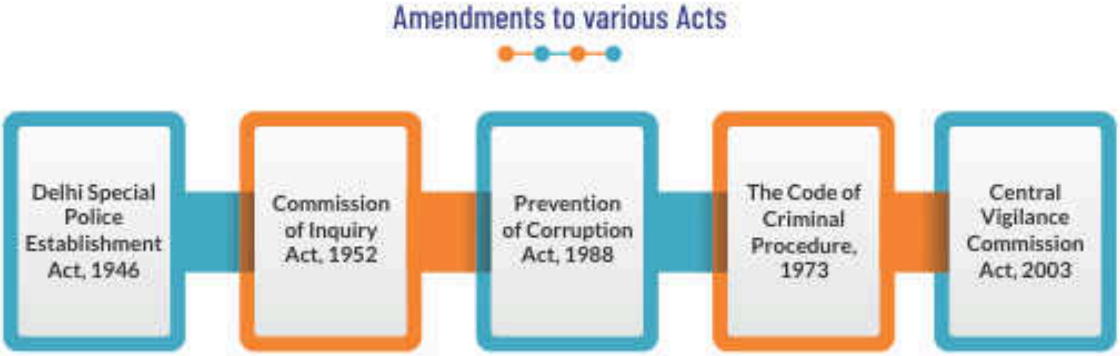
Amendment to various other Acts

In order to make the Lokpal and Lokayuktas Act, 2013 a comprehensive legislation, minor amendments necessitated in various laws dealing with the issue of corruption have also been made within the Lokpal and Lokayuktas Act, 2013. Consequently, legislations like the Commissions of Inquiry Act, 1952; Prevention of Corruption Act, 1988; Code of Criminal Procedure, 1973; Central Vigilance Commission Act, 2003 have been suitably amended to bring conformity with the provisions of the Lokpal and Lokayuktas Act, 2013.

Provision for making Rules under the Act

As per section 59(1) of the Act, the Central Government may, by notification in the Official Gazette, make rules to carry out the provisions of this Act.

An overview of the various rules notified by the Government of India for effective functioning of the Lokpal is as follows:





1 Climate Change

1.1 **Reduction in the Emission Intensity of GDP**: India's emission intensity of GDP reduced by 33% between 2005 and 2019. The original target has been achieved 11 years ahead of schedule. The share of non-fossil fuel sources in India's total installed electricity generation capacity reached 43.82% as on 31 October 2023. The original target has been achieved 9 years ahead of schedule.

1.2 **Updated Nationally Determined Contributions (NDCs)** The Hon'ble Prime Minister of India at the 26th session of the Conference of Parties to the United Nations Framework Convention on Climate Change (UNFCCC COP-26) offered India's vision to the global community on meeting the challenge of climate change by presenting to the world five nectar elements (*Panchamrit*) of climate action by India. The Union Cabinet approved India's updated 'Nationally Determined Contribution' (NDC) on 3rd August 2022. This translates the *'Panchamrit'* targets announced by Hon'ble Prime Minister at COP-26 in December 2021 into enhanced climate targets for India. The enhanced NDCs are a step towards achieving India's long-term goal of reaching net-zero by 2070.

1.3 **Long Term- Low Emission Development Strategy (LT-LEDS)** India has submitted LT-LEDS to UNFCCC in Nov, 2022 highlighting strategic low-emissions development transitions for the country. The LT-LEDS was prepared in the light of India's right to an equitable & fair share of the Global Carbon Budget which is the practical implementation of Climate Justice.

1.4 India's achievements against the NDC targets are presented in the table below:

NDC (2015)	TARGET (2030)	ACHIEVEMENT
Reduce Emissions Intensity of its GDP	33-35% over 2005 level	33% (2019)
Non-fossil electric installed capacity	40% cumulative	43.8% (2023)
Additional Carbon sink	2.5 to 3 billion tonnes	1.97 billion tonnes (2021)

India's updated NDCs:

In August 2022, India updated its NDC, India stands committed

i. to reduce Emissions Intensity of its GDP by 45 percent by 2030, from 2005 level;

ii. to achieve about 50 percent cumulative electric power installed capacity from non-fossil fuel-based energy resources by 2030, with the help of transfer of technology and low-cost international finance including from Green Climate Fund; and

iii. to put forward and further propagate a healthy and sustainable way of living based on traditions and values of conservation and moderation, including through a mass movement for 'LIFE'– 'Lifestyle for Environment' as a key to combating climate change.

1.5 The Third National Communication to the United Nations Framework Convention on Climate Change was released on December 9, 2023. The report contains information on India's Greenhouse Gas Emissions, its vulnerability to climate change, and the measures it is taking to mitigate emissions and adapt to the impacts of climate change. As of 2019, India has reduced its emission intensity of GDP by 33% over 2005 levels.

Energy sector contributed the most to the overall anthropogenic emissions with

75.81 percent, followed by agriculture sector with 13.44 percent, Industrial Process and Product Use (IPPU) with 8.41 percent and Waste with 2.34 percent.

1.6 **Mission LiFE** was launched by Prime Minister Shri Narendra Modi on 20th October 2022. At the 2021 UN Climate Change Conference (UNFCCC COP26), Hon'ble PM had announced Mission LiFE, to bring individual behaviours at the forefront of the global climate action narrative. LiFE has been acknowledged by various international foras, including IPCC Climate Change 2022, Mitigation of Climate Change Working Group III Report, 2022. Cover decision of Sharm el-Sheikh Implementation Plan, 2022, G7 Communique adopted in Sapporo, Japan, 2023, Shanghai Cooperation Organisation Communique, 2023., G20 Leaders' Declaration, 2023 and 9th G20 Parliamentary Speakers Summit (P20) and Parliamentary Forum, 2023.

1.7 **Hydrochlorofluorocarbons Phase out Management Plan (HPMP) :** India is the first country in the world to develop a comprehensive Cooling Action Plan, which seeks to provide an integrated vision towards cooling across sectors encompassing inter alia reducing cooling demand, refrigerant transition, enhancing energy efficiency and better technology options with a 20-year time horizon. During HPMP Stage-II implementation, India completely phased out the use of HCFC- 141b in manufacturing of rigid foam, the first among the developing countries to achieve the milestone. As against target of 35% reduction from the baseline as on 1.1.2020, India achieved a reduction of 44%, highlighting India's efforts in protection of the stratospheric ozone layer.

1.8 **COP 28** : The 28th Conference of Parties (COP28) was held in Dubai, United Arab Emirates (UAE), from 30th November to 13th December 2023. The major outcome from COP 28 included the decision on Outcome of the First Global Stocktake, ratcheting up global climate ambition before the end of the decade. These global efforts will be taken up by the countries in a nationally determined manner taking into account the Paris Agreement and their different national circumstances. Another major outcome of COP 28 is the agreement on the operationalization of the Loss and Damage Fund and its funding arrangements.

The decision on the operationalization of the new funding arrangements, including a Fund, for responding to loss and damage was taken by consensus by all Parties including India. The purpose of the Fund is to assist developing countries that are particularly vulnerable to the adverse effects of climate change in responding to economic and non-economic loss and damage associated with the adverse effects of climate change, including extreme weather events and slow onset events.

India's showcased a comprehensive and proactive approach to tackling climate change. Emphasizing the urgency of accessible climate finance for developing nations, Hon'ble Prime Minister highlighted the need to implement Nationally Determined Contributions (NDCs) and voiced concerns on behalf of the Global South. The initiatives launched, including LeadIT 2.0 for industry transition, the Green Credits Programme incentivizing pro-environment actions, and the focus on the Himalayan region's vulnerability, demonstrate India's commitment to diverse strategies for sustainable development.

India's involvement in the Quad Climate Working Group and the Mangrove Alliance illustrates



recognition of the pivotal role played by local communities and regional governments in fostering sustainable lifestyles and holistic conservation efforts.

2. G20 Initiatives launched Under India's presidency in the Environment and Climate Sustainability Work Group (ECSWG).

The following were launched:

2.1 Inception of a Global Alliance on land restoration of forest fire and mining affected areas under the Gandhinagar Implementation Roadmap and the Gandhinagar Information Platform (GIR-GIP).

2.2 Resource Efficiency Circular Economy Industry Coalition (RECEIC) with 40 founding members from private sector across the globe.

2.3 High-Level Principles for a Sustainable and Resilient Blue/ Ocean-based Economy (HLPSRBE). G20 countries formally adopted the 9 comprehensive high-level principles. It includes the baseline studies for preparation of Marine Spatial Planning for promotion of blue economy as per HLPSBE.

3. Green Credit Programme

Green Credit Initiative was launched by Hon'ble PM at CoP 28. It is an initiative within the governments broader Lifestyle for Environment or LIFE movement. The Green Credit Rules, 2023, have been notified on 12th October 2023 under the Environment Protection Act 1986. These rules put in place a mechanism to encourage voluntary environmental positive actions resulting in issuance of green credits. In its initial phase, voluntary tree plantation is envisaged on degraded land, waste land, watershed area etc. under the control and management of Forest departments.

The generation of Green Credit under Green Credit Rules, 2023 is independent of the carbon credit under Carbon Credit Trading Scheme 2023.

Governance structure of GCP includes the steering committee members from concerned ministries/departments, experts and institutions. The Indian Council of Forestry Research and Education (ICFRE) is designated as GCP administrator and is responsible for implementation and management of GCP. Digital process of GCP includes dedicated web platform and GC registry for streamlining the operations. In addition to these methodologies and guidelines, including registration, accounting and GC issuance, monitoring ensures the transparency and accountability of GCP.

4. Forest Conservation

4.1 **Remarkable Increase in the Number of Ramsar Sites of the Country**: India has increased its tally of Ramsar sites (Wetlands of International Importance) to 80 from existing 75 by designating five more wetlands as Ramsar sites. The number of Ramsar sites has increased from 26 to 80 in the last ten years. Amrit Dharohar Yojana has been launched for conservation of Ramsar sites through community participation on the environment day 2023. Faunal inventory of the 75 Ramsar Sites has been published by ZSI on 1st September 2023 and Floral inventory for Ramsar Sites is under preparation.

4.2 **Environmental Clearance and Forest Clearance:** Policy reforms and newer version of PARIVESH, which automated various processes, has resulted in reduction of an average time taken for grant of EC at Central Level in all the sectors from more than 600 days before 2014 to less than 72 days in 2022-23. Similarly, average time

taken for grant of FC has reduced to less than 135 days in 2021-2022. The PARIVESH platform now provides a common application form for 4 types of clearances: Environmental, Wild life ,Forest and CRZ clearance. It has evolved a Decision Support System (DSS) which provide an efficient and effective environmental appraisal without compromising on its rigour. In CRZ clearance, all nine State Coastal Zonal Management Authority were onboarded, for the first time, on PARIVESH 2.0 for online submission and processing of applications. PARIVESH 2.0 is further integrated with the national single window system and the Gati Shakti portal.

4.3 **Forest (Conservation) Amendment Act, 2023:** To achieve the country's national as well as international commitments of NDCs, carbon neutrality, eliminate the ambiguities and bring clarity about the applicability of the Act in various lands, promoting the plantation in non-forest land, enhancing the productivity of the forests, amendment in the existing Act has been made by promulgating the Forest (Conservation) Amendment Act, 2023. During last two years, the Forest Conservation Division has issued approximately 60 guidelines or clarifications to further streamline the process of approval under the Forest (Conservation) Act, 1980.

4.4 **Increase in the number of Protected Areas:** The number of Protected Areas in the country, which stood at 745 in the year 2014 have risen to 998. This accounts for 5.28% of the country's total geographic area. The numbers of Community Reserves in the country have increased from 43 in the year 2014 to 220 presently.

4.5 **Increase in forest and tree cover:** As per India State of Forest Report (ISFR) 2021, the total forest and tree cover in India is 80.9 million hectares, which is 24.62% of the geographical area of the country. Out of this, the increase in the forest cover has been observed as 1,540 sq km and that in tree cover is 721 sq km as compared to 2019. ***589.70*** Cr seedlings were planted and a total of 8.77 million Hectares of area was covered under tree plantation till October 2023 as compared to 2020.

4.6 **Mangrove Initiative for Shoreline Habitats & Tangible Incomes (MISHTI)** was launched on the World Environment Day (5th June 2023) by the Hon'ble Prime Minister. The aim of the MISHTI is to "Restoration of mangrove forests" by undertaking mangrove reforestation/ afforestation measures along the coast of India by adopting existing best practices in India and globally. Ministry has prepared a proposal and same has been submitted to National CAMPA authority for allocation of funds under MISHTI for FY 2023-24. Rs. 100 Crores have been allocated as Project outlay for the FY 2023-24.

4.7 **Blue Flag Beaches**: There were no blue flag certified beaches in India in 2014. Government of India initiated the beach development work and 08 beaches conferred blue flag certification in 2020. In 2022, total 12 beaches had blue flag certification.

5. Air Quality/Pollution

5.1 **Improvement in Air quality**: Under NCAP (National Clean Air Programme) and XV FC grants, 131 non-attainment cities are being monitored for the air quality. They have shown a positive impact as there is progressive reduction observed in the annual average concentration of PM10 in these 131 cities which has ultimately resulted in the improved air quality. Under

about 4918 plant specimens.

- **Documentation of Phytodiversity:** Till date, BSI has documented 55,387 taxa of plants, belonging to 22108 taxa of angiosperms; 83 taxa of Gymnosperms; 1,319 taxa of Pteridophytes; 15,701 taxa of Fungi; 9035 taxa of Algae; 2,819 taxa of Bryophytes and 3,044 taxa of Lichens towards the complete inventory of floral resources of the country.

- **New Discoveries:** BSI published the Plant Discoveries, 2022 which enumerated 9 new genera, 170 new species and 16 infraspecific taxa as new to science from India. It also includes 4 new genera, 149 new species, 4 infraspecific taxa as new records for Indian Flora. 21 new taxa have been assessed as Critically Endangered (CR), 05 as Endangered (EN), 03 as Vulnerable (VU) category following the IUCN category and criteria.

- **Azadi ka Amrit Dharohar:** BSI has surveyed and documented the floristic wealth of 75 Ramsar Sites throughout India.

- **Research and Publication: S**cientists of BSI have published 201 research publications and 10 books and periodicals. (Plant Discoveries, Nelumbo, Vansapati Vaani, Annual Reports and Annual Research Programmes). The official journal of BSI i.e., *Nelumbo* (The Bulletin of Botanical Survey of India), has been included in the UGC Care-list of journal and also in NAAS scoring list journal.

- **Outreach activities:**

  - BSI has conducted 1191 awareness campaign, sensitized more than 1,36,330 people and installed 20 selfie stands across country covering different sections of society under **Mission LiFE campaign.**

  - An awareness campaign was conducted among the public on eco-friendly lifestyle to nudge individual and community action to protect and preserve the environment such as **Campaign to avoid the use of single use plastic** and introduced an eco-friendly re-usable drinking straw made up of bamboo.

  - **Special lectures were organized for** forest officers and staffs, school children, college and university.

  - **Swachhata 3.0:** Across the different regional centres of BSI, a total 1449 files were reviewed out of which 1257 files were identified for weeding and were subsequently shredded and sold to the local vendor for recycling. This led to the conversion of 12.5 ton of waste to wealth of 4.66 lakhs and it freed total space of 2341 sq. feet.

  - Under DST-SERB funded scheme, BSI organized "SERB Vritika Research internship workshop from 6th December to 3rd January 2023 at BSI, CNH, Howrah which was participated by 60 students.

  - BSI, NRC, Dehradun organized a "Botanical Nomenclature Course" at BSI, NRC, Dehradun from 6.02.2023 to 10.02.2023.

c. Progress/Innovations for the reference period:

- **New Discoveries**: BSI has discovered 10 angiosperm taxa and 4 fungal taxa as new to science. Besides, BSI has also reported 7 angiosperm taxa, 2 bryophyte taxa, 2 algae taxa and one Pteridophytes taxa as new



- To promote "Jan Bhagidari" and to sensitize local communities about the importance of clean beaches and pollution free oceans, mass beach cleaning drive was organized on 21st May 2023 between 0700 – 0900 AM, across 9 coastal states and 4 Union Territories of India under India's Presidency of G20. The event was participated by approximately 20,000 participants. The Beach Cleaning campaign was joined by fourteen G20 countries and six countries across the world.
- Upscaling of ongoing National Coastal Mission scheme for promotion of climate resilient Blue economy activities were prepared.
- Statutory Audit of Books of accounts of Society of Integrated Coastal Management (SICOM) has been completed. Application for de-register of SICOM from the Registrar of Societies, NCT has been submitted.
- First General Body Meeting of National Centre from Sustainable Coastal Management (NCSCM) was held in March, 2023.
- Draft Adaptative Management Plan for externally aided Enhancing Coastal Resilience of Indian Coastal Communities (ECRICC) project by Green Climate Fund prepared.

Scheme/Programme under the Division

Conservation and Management of Mangroves and Coral Reefs, a central sector scheme, has been implemented. Under the Scheme, 38 mangroves and 4 coral reef sites have been identified for on-ground intervention (Annexure I). During the financial year 2022-23, the Ministry has provided financial support in the ratio 60:40 to the Forest Departments of the Coastal States/ UTs Govts.

Objectives

- Conservation and Management of Mangroves and Coral Reefs.
- Eco-restoration and afforestation in potential and also in degraded coastal areas.
- Maintenance of genetic diversity especially of threatened and endemic species.
- Creation of Awareness on importance of these ecosystems leading to their conservation.
- Livelihood improvement of people in coastal areas.

Progress/Achievements

a. 17 proposals have been approved out of 20 received for grant of financial support under Conservation and Management of Mangroves and coral reefs for the year 2022-23.

b. 10 Blue Flag beaches have applied for renewal of Blue Flag certification.

c. Blue Flag certification for the environmentally sound beach infrastructure and operating measures.

d. Beach Development work at Sonapur, Odisha is completed and is in progress at Tannirbhavi, Karnataka. Both these beaches have applied for Blue Flag Certification.

Autonomous bodies- appraisal of the functioning of each of the autonomous bodies/ institutions in relations to their objectives.

National Centre for Sustainable Coastal Management (NCSCM) was established under the aegis of MoEF&CC in February 2010 with the objectives of developing into a leading institution for the management of coastal and marine areas

with adequate human resources and research infrastructure. It will support the management of coastal and marine areas in India in an integrated and sustainable manner and provide guidance to the national and State governments, and other relevant stakeholders, on matters of policy and science related to Integrated Coastal Zone Management (ICZM).

Vision: To promote sustainable coasts through increased partnerships, conservation practices, scientific research and knowledge management for the benefit and wellbeing of current and future generations.

Mission: To support integrated management of the coastal and marine environment for livelihood security, sustainable development and hazard risk management by enhancing Knowledge, Partnerships and Network, Research and Advisory Support and Coastal Community Interfacing.

The first General Body meeting of NCSCM was held in March 2023.

4. Grants-in-aid released to Institutions/organisations including NGOs

S. No.	Name of Organization	Purpose	Total amount released (in lakhs)
1	Forest Department of Gujarat	Conservation & Management of Mangroves and Coral Reefs (2022-23)	23.3919
2	Forest Department of Kerala		19.6015
3	Forest Department of Odisha		56.4954
4	Forest Department Tamil Nadu		48.4387
5	Forest Department of West Bengal		88.51456
6	Forest Department of Karnataka		16.59225
8	National Centre for Sustainable Coastal Management	Preparation of Mangrove Zonation Community Atlas of India	39.06
		Beach cleaning activity under the ambit of G20 presidency for 29 beaches	39.87
		Study visit of Public Accounts Committee to Mahabalipuram	10.92
		For Beach infrastructure development	400

Annexure I

States/Union Territories	Mangrove and Coral Reefs Sites
West Bengal	1. Sunderbans
Orissa	2. Bhitarkanika 3. Mahanadi 4. Subarnarekha 5. Devi River Mouth 6. Dhamra 7. Mangrove Genetic Resources Centre 8. Chilika



States/Union Territories	Mangrove and Coral Reefs Sites
Andhra Pradesh	9. Coringa 10. East Godavari 11. Krishna
Tamil Nadu	12. Pichavaram 13. Muthupet 14. Ramnad 15. Pulicat 16. Kazhuveli
Andaman & Nicobar	17. North Andamans 18. Nicobar
Kerala	19. Vembanad 20. Kannur (Northern Kerala)
Karnataka	21. Coondapur 22. Dakshin Kannada/Honnavar 23. Karwar 24. Manglore Forest Division
Goa	25. Goa
Maharashtra	26. Achra-Ratnagiri 27. Devgarh-Vijay Durg 28. Veldur 29. Kundalika-Revdanda 30. Mumbra-Diva 31. Vikroli 32. Shreevardhan 33. Vaitarna 34. Vasai-Manori 35. Malvan 36. Thane Creek
Gujarat	37. Gulf of Kachchh 38. Gulf of Khambhat 39. Dumas-Ubhrat
Coral Reef Sites	
Gujarat	1. Gulf of Kachchh
Tamil Nadu	2. Gulf of Mannar
Andaman & Nicobar	3. Andaman and Nicobar Coral Reef
Lakshadweep	4. Lakshadweep

and Development (BMZ), and implementation by *Deutsche Gesellschaft fur International Zusammenarbeit* (GIZ) in partnership with the MoEFCC, Government of India, and the State Forest Departments of Karnataka, Uttarakhand and West Bengal in June 2023.

Hon'ble Minister, EF&CC has released 14 guidelines to address Human-Wildlife Conflict in the country in a holistic manner, developed with support from GIZ under the project on Human-Wildlife Conflict Mitigation in India.



Guidelines (In bilingual version)

Wildlife Week, 2023 Celebration:

The Hon'ble Prime Minister of India Shri Narendra Modi delivered a message on the occasion of Wildlife Week, 2023. Throughout the nation, various activities like painting competition, webinars, documentaries, Competition on Wildlife Photography were taken place at different level to create awareness among every group of the citizens.

Achievements in Convention on International Trade in Endangered Species of Wild Fauna and Flora (CITES):

A team of Indian delegates attended the 77th meeting of Standing Committee of CITES held in Geneva, Switzerland, in November 2023 and bagged remarkable achievement as India was removed from the process of Review of Significant Trade (RST) for Red Sanders, under



Do & Don'ts (In bilingual version)

CITES. India was also placed under 'Category-1' for the CITES National Legislation Programme.

GoI, UNDP-GEF SECURE Himalaya Project:

The GEF funded SECURE Himalaya entered into sixth year of implementation. This year marks consolidation and replication of ongoing activities,

term survival of the population of elephants in their natural habitats by protecting them, their habitats and migration corridors, Government of India launched Project Elephant (PE) in the year 1991-92 as a Centrally Sponsored Scheme with the following objectives:

- To protect elephants, their habitat and corridors
- To address issues of man-elephant conflict
- Welfare of captive elephants

The implementation of Project Elephant is through the Centrally Sponsored Scheme with the grant to State Governments with a funding pattern ratio of Central: State share to 60:40 and 90:10 for North East and Himalayan states. Presently the Project is being implemented in 23 States/UTs, viz. Andhra Pradesh, Arunachal Pradesh, Assam, Chhattisgarh, Jharkhand, Karnataka, Kerala, Manipur, Madhya Pradesh, Maharashtra, Meghalaya, Nagaland, Odisha, Tamil Nadu, Tripura, Uttarakhand, Uttar Pradesh, West Bengal, Rajasthan, Bihar, Punjab, Himachal Pradesh and Haryana (where an elephant rescue centre has been set up supported by Project Elephant). To give a concerted thrust to the conservation of the species, Govt. of India has also declared the elephant as the National Heritage Animal of India. The Project Elephant, Project Tiger were the sub scheme of Integrated Development of Wildlife Habitats (IDWH). During the Expenditure Finance Committee meeting (EFC), Department of Expenditure, Ministry of Finance which was further approved by the Cabinet, it was decided that the Sub scheme of CSS- PE should be merged with CSS–PT and named viz. Project Tiger & Elephant (PT&E).

Activities undertaken:

- **GajUtsav**

The programme was inaugurated by Smt.



DNA sampling of captive elephants

Droupadi Murmu, Hon'ble President of India, on 7th April, 2023.. The inaugural session was held on 7th April, 2023, followed by 18th Steering Committee Meeting of Project Elephant and Plenary Session on "Taking the Elephant Conservation Forward in Modern India".

- Gaj Suchana App was developed for collation of data on captive elephants and their owners.
- So far, 602 samples of captive elephants have been recorded in the Gaj Suchana App. The sample collection process has been completed in the States/UTs of Delhi, Haryana, Chhattisgarh, Uttarakhand, Tripura, Rajasthan and Punjab and partially completed in the States of Tamil Nadu, Bihar, West Bengal, Uttar Pradesh and Odisha.

- **Ground-truthing of elephant corridors**
  - The Project Elephant in coordination with the State Forest Departments have ground validated 150 elephant corridors across 15 elephant range states in India.
  - A report on Elephant Corridors of India was released during the World Elephant Day, 2023 at Bhubneswar, Odisha by the Hon'ble Minister, EF&CC.
  - The report comprises of details pertaining to 150 elephant corridors across India with corresponding maps.

- **Steering Committee meeting of Project Elephant:**
  - The 18th meeting of the Steering Committee was held under the Chairmanship of Hon'ble Minister, EF&CC at Kaziranga National Park, Assam on 7th April, 2023.
  - The 19th meeting of the Steering Committee was held under the Chairmanship of Hon'ble Minister, EF&CC at Bhubaneswar, Odisha on 12th August, 2023.

- **Central Project Elephant Monitoring Committee (CPEMC)**
  - Fifth meeting of the CPEMC was convened under the Chairmanship of ADG (PT&E/FC) & MS (NTCA) on 6th March, 2023 and Sixth meeting on 21st July, 2023at MoEF&CC, New Delhi.

- **Captive Elephant Healthcare and Welfare Committee (CEHWC)**
  - Second meeting of the CEHWC was convened under the Chairmanship of IGF (PT&E) & Director, PE on 17th January, 2023 at MoEF&CC, New Delhi through virtual mode and the third meeting on 27th July, 2023 at MoEF&CC, New Delhi.

Release of Publications:

a. The Guidelines for Human-Elephant Conflict Mitigation-Taking a Harmonious Coexistence Approach (2023)



Release of publications:

b. Human–elephant conflict manual (Assamese version).

c. Management Effectiveness Evaluation of the Elephant Reserves in India.

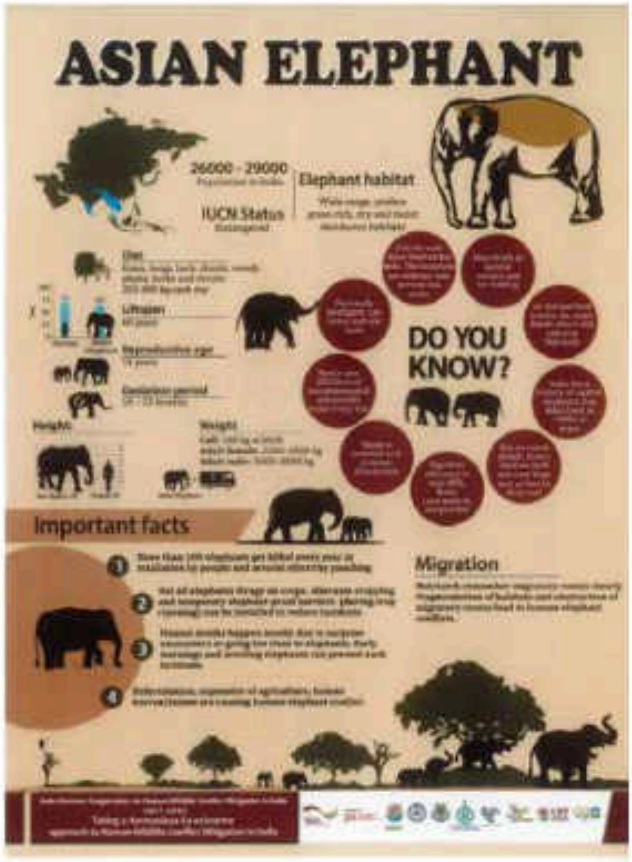
d. Necropsy and carcass disposal of Asian elephant: Recommended operating procedure.

e. Trumpet Quarterly Newsletter Volume 3: Issue 1-2, and 3

f. Elephant Reserves of India – An Atlas-Version-2.

g. Elephant Corridors of India

h. Field manual for managing Human Elephant Conflict (Hindi version).



Guidelines (In bilingual version)

Multilateral environmental agreements and international meetings:

- IGF (PT&E) & Director (PE) attended the International Conference on Human-Wildlife Conflict and Coexistence at Oxford, United Kingdom from 30th March – 1st April, 2023.
- MIKE and ETIS data of Govt. of India for the calendar year 2022 submitted to CITES and TRAFFIC respectively.
- Presentation by IGF (PT&E) & Director (PE) during the 11th Meeting of the IUCN SSC AsESG held on 14th -17th March, 2023.

Management Effectiveness Evaluation (MEE):

- To streamline management approaches and provide a platform for sharing best practices in managing elephant habitats, the document released during GajUtsav titled 'Management Effective Evaluation (MEE) of the Elephant Reserves in India' provided the conceptual, administrative and legal framework for objectively evaluating the elephant reserves.



Do & Don'ts (In bilingual version)

- The Ministry has completed the pilot 'Management Effective Evaluation (MEE) of 4 Elephant Reserves in India namely. (i) Shivalik Elephant Reserve, Uttarakhand, Northern Region (ii) Kaziranga-KarbiAnglong Elephant Reserve, Assam, North-East Region (iii) Simplipal Elephant Reserve, Odisha, East Central Region (iv) Nilgiri Elephant Reserve, Tamil Nadu, Southern Region.

Capacity building workshops:

- A Capacity Building Workshop on "Minimizing Railway-induced Elephant Mortalities for the Officers of the Indian Railways" was conducted on 1st-3rd February, 2023 at Wildlife Institute of India, Dehradun. A similar program was also conducted 23rd-25th November, 2023 at WII, Dehradun.
- Capacity Building Workshops on "Mainstreaming Management of The Elephant Reserves" were conducted on 13th-15th March, 2023 28th - 29th and November, 2023 at Wildlife Institute of India, Dehradun.

Progress/Innovations:

- 110 critical stretches across the Railway network in the country that pass-through elephant habitats have been identified. In these critical stretches, multipronged strategies are planned to minimize Railway-related elephant collisions. In these locations measures such as building underpasses, clearing vegetation along the tracks to increase visibility for the loco pilots to avoid collisions, provisioning ramps, and others will also be taken up.

GajGaurav Award



Progress/Innovations:



- A joint survey of the critical stretches of railway lines passing through the elephant habitats in West Bengal for suggesting mitigation measures was conducted during 26-31st December, 2023 by the officers/ officials of Project Elephant, MoEF&CC, Ministry of Railways and West Bengal Forest Department.
- The survey was conducted in the critical stretches of Alipurduars and Darjeeling Districts of North Bengal region and in Jhargram & Paschim Medinipur Districts of South Bengal region with an objective to identify specific elephant crossing zones on these stretches and to suggest site-specific mitigation measures based on the location and the extent of these crossing zones to mitigate train-elephant hits. The team deliberated on different structural mitigation measures in the identified critical elephant zones intersected by railway tracks such as level crossings, creation of ramps, wildlife underpasses, wildlife overpasses, installation of Distributed Acoustic Sensing (DAS) System etc

Achievements:

- Every year 12th August is celebrated as the World Elephant Day across the globe to reaffirm mankind's collective pledge in conserving one of the most iconic species in the planet. This year, the MoEFCC has observed the Elephant day in Bhubaneswar with active support and coordination by the Odisha Forest Department.

8.5 Project Tiger/National Tiger Conservation Authority (NTCA)

The National Tiger Conservation Authority (NTCA) was constituted under enabling provisions of the Wildlife (Protection) Act, 1972, as amended in 2006, for strengthening tiger conservation as per powers and functions assigned to it under the said Act.

Objectives:

The main objective is to provide statutory Authority to Project Tiger so that compliance of its directives becomes legal; to foster accountability of centre and states in management of Tiger Reserves; to provide an oversight by parliament and to address livelihood interests of local people in areas surrounding Tiger Reserves.

Functions of the NTCA:

The main function is conservation of tigers and their habitat. Further details of powers and functions of NTCA are given under section 38O of the Wildlife (Protection) Act, 1972, as amended in 2006.

Activities undertaken:

- 12 cheetahs reintroduced to Kuno National Park from South Africa with support from more than 450 "cheetah mitr" for successful acclimatization.
- Rajaji Tiger translocation project boosts tiger numbers in the western region; one tigress reintroduced.
- Project Cheetah was deliberated in the consultative committee of the parliament.
- Global Tiger Day marked with the release of comprehensive tiger numbers at Corbett Tiger Reserve.
- Final report of All India Tiger Estimation 2022 and 5th cycle of Management Effectiveness Evaluation of Tiger Reserves were released.
- Commemoration of 50 Years of Project Tiger was celebrated in Mysuru with a mark of Special Coin and International Big Cat Alliance (IBCA) was launched by the

Honorable Prime Minister.

- Six Tiger Reserves, Kali, Melghat, Pilibhit, Tadoba-Andhari, Nawegaon-Nagzira, and Periyar received Conservation Assured Tiger Standards (CA|TS) awards.
- World Rangers Day celebrated in Kanha and Manas Tiger Reserves.
- Pair of tigers reintroduced to Ramgarh Vishdhari Tiger Reserve.
- Hon'ble President of India inaugurated art exhibition showcasing tribal communities' relationship with wildlife under the title, "Silent Conversation: From Margins to the Centre" in New Delhi.
- MSTrIPES capacity-building workshop held in various tiger reserves.
- Regional Field Directors' Workshop was conducted with a focus on 'Changing Trends in Tiger Reserve Management.'
- World Wildlife Week and World Environment Day celebrated across tiger reserves.
- Empowerment of local communities for wildlife conservation through various capacity building workshop were taken up across Tiger Reserves.
- Successful translocation of 28 Gaurs from Kanha to Sanjay Tiger Reserve.
- Corridor conservation planning workshop at Panchmari for Satpura-Melghat-Pench was taken up.
- Mission Life program celebrated in different tiger reserves.
- NTCA orientation program organized for southern states at TN Forest Academy involves 18 officers from 11 tiger reserves.
- Swachhata Pakhwada adopted as a pledge for a brighter future.
- One-year celebration of cheetah reintroduction in Kuno National Park.
- Detailed report on MEE of Tiger Reserves 2022 highlights 12 Tiger Reserves in 'Excellent,' 21 in 'Very Good,' 13 in 'Good,' and 5 in 'Fair' categories.

(a) Progress and Achievements:

Prime Minister inaugurated a ground breaking initiative as India launches the International Big Cat Alliance (IBCA). This alliance marks a significant step toward global collaboration in the conservation and protection of big cats. The inauguration ceremony underscores India's commitment to safeguarding these majestic creatures, emphasizing the importance of international cooperation in preserving biodiversity and fostering a shared responsibility for the welfare of big cats worldwide. The formulation of IBCA and its secretariat is under progress.





9.1 Climate Change:

a. Introduction

Climate change is a global challenge and requires collective global action to avert and minimize the impacts of climate change. International efforts to address climate change are guided by the United Nations Framework Convention on Climate Change (UNFCCC) and its two instruments, namely the Kyoto Protocol and the Paris Agreement. As a responsible global player, India is a Party to the UNFCCC and its instruments.

As a part of its overall strategy, India emphasizes the foundational principles of equity and common but differentiated responsibilities and respective capabilities. India's historical contribution to cumulative global GHG emissions is therefore minuscule, despite having a share of ~17% of the world's population. India's per capita annual emissions are about a third of the global average.

The National Action Plan on Climate Change (NAPCC) provides an overarching policy framework for climate actions in the country and outlines a number of steps towards achievement of India's climate change related objectives of adaptation and mitigation. It comprises, inter alia, of focused national missions on climate change in specific areas of solar energy, enhanced energy efficiency, water, agriculture, Himalayan eco-system, sustainable habitat, green India strategic knowledge on climate change and human health. Further, the National Mission on Sustainable Transport is being developed to devise efficient and cost-effective strategies across environmental, social, and economic aspects of transportation.

The Missions are institutionalized and implemented by the respective nodal Ministries. The national missions have a focus on adaptation in sectors such as Sustainable Agriculture, Water, Sustainable Habitat, Himalayan Ecosystem, Forestry and Human Health. States and Union Territories (UTs) are being supported in respect of their respective State Action Plans on Climate Change (SAPCC). Prepared in line with the strategy outlined in the NAPCC to address State specific actions, these SAPCCs, *inter-alia* indicates regional climate vulnerability and state level actionable strategies for mitigation and adaptation.

In addition, Government has launched many schemes and programs to scale up India's climate action to support projects that builds climate resilience in the priority areas identified under the missions of NAPCC and SAPCCs. Appropriate measures are being taken under these schemes and programs across many sectors including water, agriculture, forest, energy and enterprise, sustainable mobility and housing, waste management, circular economy and resource efficiency, etc.

India updated its ambitious Nationally Determined Contribution (NDC) in August 2022. India has shown impressive achievements to what it committed in 2015, as shown in the figure below.

NDC (2015)	Target (2030)	Achievement
Non-fossil fuel based electric installed capacity	40% cumulative	43.8% (August 2023). Target achieved 9 years ahead of committed time
Reduce emissions intensity of GDP	33-35% over 2005 levels	Reduced by 33 per cent between 2005 and 2019
Additional carbon sink	2.5-3.0 billion tons	1.97 billion tons (2021)

MoEFCC is designated as the nodal Ministry for coordinating India's domestic as well as international actions through its Climate Change Division. As a Party to UNFCCC and its